LOK SABHA SECRETARIAT

Telegrams : LOKSABHA, NEW DELHI
FAX : 23010756

PARLIAMENT HOUSE ANNEXE
NEW DELHI-110001

No.8(142)/SCTC/2011 Dated the 20th September, 2011

From

Mukesh Kumar,
Committee Officer.

To

Shri J.K. Pal,
Ex-Assistant Registrar,
IIT Kharagpur, 3rd Floor, 98-A,
Desh Bandhu Road East,
Kolkata – 700035.

Subject: Non-implementation of reservation policy for SCs/STs by IIT, Kharagpur.

Sir,

I am directed to refer to your representation dated the 23rd February, 2010 alongwith its enclosures addressed to the Hon'ble Chairman, Parliamentary Committee on the Welfare of Scheduled Castes and Scheduled Tribes on the subject mentioned above and to forward herewith a copy of the reply received from the Government of India, Ministry of Human Resource Development, Department of Higher Education (Technical Section-I), vide their O.M. F.No. 4-8/2010-TS.I, dated the 8th August, 2011 for your information.

Yours faithfully,

20/9/2011

COMMITTEE OFFICER

142

F.No.4-8/2010-TS.I
Government of India
Ministry of Human Resource Development
Department of Higher Education
Technical Section – I

Shastri Bhawan, New Delhi
Dated: 8th August, 2011
16th

OFFICE MEMORANDUM

Subject: Allegation of violation of reservation policy and caste discrimination made by Shri J.K. Pal, Ex-Asstt. Registrar, IIT-Kharagpur.

The undersigned is directed to refer to the Lok Sabha Secretariat, SCTC Branch, OM No. 8(142)/SCTC/2011, dated 13th April, 2011 on the aforesaid subject wherein Shri JK Pal, an Ex-Asstt. Registrar, IIT-Kharagpur, complained against non-implementation of reservation policy by the Institute. Shri Pal also enclosed a number of newspaper clippings leveling allegations of corrupt practices being followed by the Institute's authorities.

2. The matter has been taken up with IIT-Kharagpur and it is revealed that:

(a) Shri JK Pal was appointed in IIT-Kharagpur as an Asstt. Registrar against the reserved vacancy for OBC and worked from 03.08.2000 to 09.04.2008 in different Sections of the Institute. Shri Pal initially submitted his OBC Certificate No. 0173 dated 10.05.1995, without mentioning the creamy layer status. On asking for submission of the creamy layer status, he submitted a Duplicate Certificate No. 0173, (manually corrected from 0008), dated 10-05-1995.

(b) However, while both the original and duplicate certificates were dated 10.05.1995, the signatures of the Sub-Divisional Officer, Siliguri on the upper right corner of the certificate and the photograph of the individual were dated 16.08.07. On close scrutiny of the Certificate as submitted by Shri Pal on 20.07.2007, showing as duplicate of the Certificate as submitted by him on 19.09.2000, indicates following deviations:

(i) In the present Certificate, 'No. 0008' has been corrected manually as 'No. 0173' with the same date 10.05.1995. In the earlier Certificate there was no such correction.

(ii) The earlier certificate was in the FORM OF CERTIFICATE FOR OTHER BACKWARD CLASSES, but the duplicate certificate indicated CERTIFICATE FORM FOR BACK-WARD CLASSES.

(iii) The language of the duplicate copy is different from the certificate bearing No. 0173 dated 10.05.1995 as submitted by Shri Pal initially.

(iv) In the earlier certificate of the same number and date, there was no indication of creamy layer, but in the Duplicate Certificate the Creamy Layer term has been inserted together with other modifications. Earlier Certificate did not possess those information.

3. The then Legal Adviser to the IIT-Kharagpur, Late Shri PC Chunder, who scrutinised the copies of the certificates, concluded that the Duplicate Certificate, as submitted by Shri JK Pal on 20.08.2007, may not be considered as 'Duplicate' and the matter may be brought to the notice of the appropriate authority whether an enquiry be made for the genuineness of such Certificates in consultation with some well known Criminal Lawyer.

Kirtee
2/9/2011

Contd.....2/-

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Annex-I

F.No.4-8/2010-TS.I
Government of India
Ministry of Human Resource Development
Department of Higher Education
Technical Section – I

Dated: 17th February, 2011

Subject: **CVC Reference - Complaint made by Shri J.K. Pal against Dr. T.K. Ghosal, Registrar, IIT-Kharagpur.**

Reference Vigilance Unit's note dated 11th November, 2010 on the aforesaid subject.

2. Based on the comments obtained from the Director, IIT-Kharagpur a Report on the complaint is enclosed for onward transmission to the Central Vigilance Commission.

This issues with the approval of S.S.(TE).

(YATENDRA KUMAR)
Under Secretary to the Government of India

Under Secretary (Vig)

TS 9279/11 Copy for information to the Director, IIT-Kharagpur.

17/2/11

18-2-11

(43

REPORT

The Vigilance Unit have forwarded a copy of the CVC reference forwarding a complaint made by one Shri J.K. Pal, against Dr. T.K. Ghosal, Registrar, IIT-Kharagpur. It has *inter-alia* been alleged that Dr. T.K. Ghosal was appointed to the post of Asstt. Registrar on open direct recruitment and not on promotion and he neither fulfilled the required educational qualification of 55% marks in his Master's degree, nor did he have 8 years of experience in the post of Dy. Registrar at the time of applying for the post of Registrar, as required in the advertisement dated 02.12.2009. It has further been implied that the qualification, experience and competence of Dr. Ghosal was relaxed by the competent authorities for appointment to the post of Registrar ignoring the claims of S/Shri B.K. Basu Roy Chowdhury and S. Chatterjee, Dy. Registrars, who satisfied the required qualifications and experience. Shri Ghosal reportedly was penalized by the Hon'ble CIC in the case of Prof. Rajeeb Kumar V/s Dr. A. Patra, PIO, IIT-Kharagpur.

2. The complaint was referred to the Director, IIT-Kharagpur, soliciting his comments. It has been stated that the Institute strictly follows the selection / recruitment procedure for filling up of Group 'A' vacancies as per the Ministry's letter No. 5-11/87-T.6/TD.I, dated 27.03.1990. The vacancies under direct recruitment and promotional quota are taken together through open selection where the internal candidates have to compete with outside candidates. While considering the candidature of the internal candidates, the Ministry's guidelines are kept in view which *inter-alia* states that in the case of promotion to the post of Asstt. Registrar and Dy. Registrar, the educational qualifications prescribed for direct recruitment need not be insisted upon, but only those who are at least graduates, should be eligible for promotion.

3. Dr. D. Gunasekaran, the then Registrar, was granted lien for taking up assignment as Registrar in the Indian Maritime University for a period from 5th December, 2009 to 4th December, 2011. The lien vacancy of the post of Registrar, IIT-Kharagpur, was advertised on 02.12.2009 and all the Dy. Registrars, ie, S/Shri B.K. Basu Roy Chowdhury, S. Chatterjee, A.P. Trivedi and Dr. T.K. Ghosal were called for interview along with the external candidates. No offer has reportedly been made against the said advertisement.

4. Dr. T.K. Ghosal did not have 8 years of regular service as Dy. Registrar at the time of his application for the post of Registrar. However having regard to the fact that Dr. Ghosal has been working at IIT-Kharagpur for over 38 years in various capacities and held Group 'A' positions since 14.03.1995, he was given the officiating charge of the post of Registrar. Dr. Ghosal has been holding the post of Dy. Registrar (acting) from 10.03.2002 to 10.08.2004, in addition to his duties as Asstt. Registrar and on regular basis since 11.08.2004. He continues to hold the substantive post of Dy. Registrar, in-charge of Finance & Accounts.

9. The Director

(1) Subject to the Budget provisions made for the spe Director shall have the power to incur expenditure in accordance w as may be laid down by the Board from time to time.

(2) The Director shall have the power to reappropriate fi to different items constituting the recurring budget upto a limit each item provided that such re-appropriation will not involve any years. Every such re-appropriation shall as soon as possible be Board.

† (3) The Director shall have the power to waive recovery upto Rupees Two hundred and fifty to a member of the staff whos 500.00 per mensem or less, not detected within twenty—four mor Every such waiver shall, as soon as possible, be reported to the B

(4) The Director shall have the power to write off irrecover s. 1000 and of irrecoverable value of stores lost or rendered unsi fair wear and tear upto Rs. 5,000 in any individual case subject to as may be made by the Board from time to time.

(5) The Director shall have the power to fix, on the recomm Selection Committee, the initial pay of an incumbent at a stage high mum of the scale but not involving more than five increments in to which appointment can be made by him under the powers veste provisions of the Act.

(6) The Director shall have the power to employ technician paid from contingencies involving emoluments not exceeding Rs. 7 head.

(7) The Director shall have the power to send members of th ing or for a course of instruction inside India subject to such terms as may be laid down by the Board from time to time.

(8) The Director shall have the power to sanction remissi of rents for buildings rendered wholly or partially unsuitable.

(9) The Director shall have the power to sanction tempora any building for any purpose other than that for which it was con

† Amended vide Ministry of Education letter No. F-11-7/76-T.6 dated 26 Octobe rom 22 October, 1977.

APPENDIX

Appendix to Ministry of Human Resource Development letter No. F.5-11/87.T-6/TD.I dt. 27.3.1990 regarding revision of pay-scales of non-teaching employees in the IITs corresponding to Group A employees of the Central Government.

(i) The Assistant Registrars and their equivalents will have a senior scale of Rs. 3000-100-3500-125-5000, placement in which will be after 8 years of service as Assistant Registrar provided they have participated in two training programmes on Education Administration, University Management, Accounts and Finance etc. each of approximately four weeks' duration and their performance appraisal reports are consistently satisfactory. The senior scale will be restricted to 50% of the total strength of Asstt. Registrars and their equivalent grades.

(ii) There will be no Selection Grade for Assistant Registrars and their equivalent grades.

(iii) The minimum qualifications for recruitment of Asstt. Registrars and their equivalent will be a Master's degree with 55% marks. All direct recruitment should be made through all-India advertisement and Selection, on the basis of a written test and interview. 50% of the posts at this level may be filled through promotion from the lower grades. The minimum Educational qualifications mentioned above will not apply in the case of promotion.

(iv) Assistant Registrars and their equivalents will be eligible for promotion to the post of Deputy Registrars and their equivalents to the extent of 25% of the vacancies at that level on completion of 8 years in the senior scale. 75% of the posts of Deputy Registrars and their equivalents shall be filled by direct recruitment through all-India advertisement and Selection.

(v) The appointment of Registrars, and Finance Officers should be on the basis of direct recruitment for a tenure of five years, which can be renewed for a similar term.

(vi) In the case of Finance Officers, the existing practice of appointment by drawing Officers belonging to the Indian Audit and Accounts Service or other similar Services on deputation will continue and their pay will be fixed according to rules within the approved scale mentioned in para 1.

(vii) The qualifications, experience, etc. to be prescribe for open recruitment to the post of Registrars etc. should be as indicated in Annexure.

Annex-II

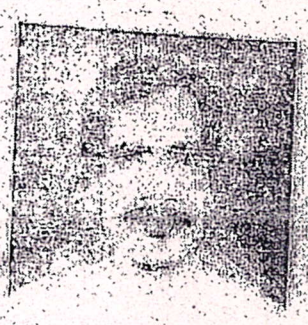
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GOVERNMENT OF WEST BENGAL

OFFICE OF THE SUB-DIVISIONAL OFFICER

(General Section)

No. 1173



FORM OF

CERTIFICATE FOR OTHER BACKWARD CLASSES

This is to certify that Jadab Kumar Pal son of Late Gokulda Pal of Village Lakshmipur P.O. Kaonia District / Division Burdwan in the State of West Bengal belonging to the Kumbhakar Community which is recognised as a Backward Class under the Government of West Bengal Notification No. 346-TW/EC, dated 13-7-94 published in the Calcutta Gazette of Extra Ordinary issue.

Shri Jadab Kumar Pal and / or his family ordinarily resides(s) in the State of West Bengal. This is also to certify that he / she does not belong to the catagories of persons to whom reservation shall not apply as per provisions contained in the Schedule mentioned in Order No. 347-TW-EC dated 13-7-94 of the Schedule Castes and Tribes Welfare Department, Government of West Bengal.

Dated : 10-05-1995

SEAL

SUB-DIVISIONAL OFFICER
SAINTHIA

N.B. The term 'Ordinarily' used here will have the same meaning as in section 20 of the Representation of the People Act, 1950.

(104)

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GOVERNMENT OF WEST BENGAL

16/8/95
Sub-Divisional Office
Siliguri

OFFICE OF THE SUB-DIVISIONAL OFFICER, SILIGURI, DIST. DARJEELING

CERTIFICATE FORM FOR BACKWARD CLASSES

DUPLICATE

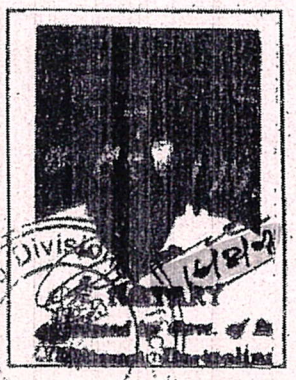
No. 0008 R/ 0173 Date 10.05.1995

This is to certify that Shri/Smt. Kumari Jadab Kumar Pal

Son/Daughter of Shri / Late Joy Gobinda pal of village/town Tulakata jote Kadamtala Matigara in the District/Division Darjeeling of the State of West Bengal belongs to the Kumbhakar community which is recognised as a Backward Class under the Government of West Bengal Notification *No 346-TW/EC dt. 13.7.94 Govt. of W.B. Ministry of Welfare Govt. of India and Notified in the Resolution vide No. 12011/9/94-BCC dt. 19.10.94 Entry in the Mondal List of O.B.C. published in the Calcutta Gazette of Extra Ordinary issue.

Shri/Smt. Kumari Jadab Kumar Pal and / or / his / her family ordinarily reside (s) in the district of Darjeeling in the state of West Bengal.

This is also to certify that he/she does not belong to the category of Persons / Sections (Creamy Layer) to whom reservation shall not apply as per provision contained in the Schedule mentioned in Order No. 347-TW / EC M - 6 / 82 (1) Dt. 13/7/94 of the Schedule Castes & Tribes Welfare Department or in column 3 of the Schedule to the Govt. of India, Deptt. of Personnel & Training OM No. 36012 / 22 /93-Estt. (SCT) dated 8/9/93.



Sub-Divisional Officer Seal Siliguri

Sd/-
Sub Divisional Officer,
SILIGURI

* Plase note the specific Notification..

N.B.: (a) The term 'ordinarily' used here will have the same meaning as in section 20 of the Representation of the Peoples Act. 1950.

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INDIAN INSTITUTE OF TECHNOLOGY
KHARAGPUR- 721 302

No. HT/3-9/187
Date: 25/08/2007

On 19.9.2000 Shri Jadab Kumar Pal (EC: 00069), Assistant Registrar attached to CEP submitted an attested copy of **Certificate for Other Backward Classes** bearing No. 0173 from the Office of Sub-Divisional Officer, Government of West Bengal. The date of that certificate was 10/05/1995. A copy of the same is placed at **F/A.**

Since, the above Certificate did not possess any information as regards creamy layer, Shri Pal was asked to submit the Certificate showing the information that he does not belong to the category of persons/sections (**creamy layer**).

On 20/08/2007, Shri Jadab Kumar Pal submitted an attested xerox copy of his **OBC Certificate** issued by Sub-Divisional Officer, Siliguri, District: Darjeeling. As per his statement, the said certificate has been issued by the **SDO, Siliguri on 16th August 2007.**

According to English Dictionary, duplicate stands for (1) **made or done exactly like an original (2). an exact copy of an original.**

On close scrutiny of the Certificate as submitted by Shri Pal on 20.08.2007 is showing as duplicate of the Certificate as submitted by him on 19.9.2000 indicates following deviations:

a) In the present certificate the No.0008 has been corrected manually as No.0173 with the same date 10.05.1995. In the earlier certificate no such correction was there.

b) Earlier certificate was in the **FORM OF CERTIFICATE FOR OTHER BACKWARD CLASSES** but the duplicate certificate indicates **CERTIFICATE FORM FOR BACKWARD CLASSES.**

c) The language of the duplicate copy is different from the certificate bearing No. 0173 dated 10.05.1995 as submitted by Shri Pal initially.

d) In the earlier certificate of the same number and date there was no indication of creamy layer but the Duplicate Certificate the Creamy Layer term has been inserted together with other modification as regards Government of West Bengal Notification No346-TW/EC dt.13.07.94 Govt. of W.B Ministry of Welfare Govt. of India and Notified in the Resolution vide No. 12011/9/94-BCC dt.19.10.94. Entry in the Mondal List of O.B.C published in the Calcutta Gazette of Extra Ordinary issue. **Earlier Certificate does not possess this information.**

That being the position it may be concluded that Duplicate Certificate as submitted by Shri Jadab Kumar Pal on 20.08.2007 may not be considered as DUPLICATE and the matter may be brought to the notice of the Appropriate Authority whether the enquiry be made for the genuineness of such Certificate in consultation with ~~Legal Adviser~~. Some well-known Constitutional Lawyer.

P.K. Chandra
25.8.07 Legal Adv

Exparte: Shri Jadav Kumar Pal, son of Shri Joy Gobinda Pal, Village/Town: Tulakota Joti, Kadamtala Matigera, District: Darjeeling, working as Assistant Registrar at I.I.T., Kharagpur

Client: Indian Institute of Technology, Kharagpur, West Bengal.

Sub.: Steps to be taken against Shri Jadav Kumar Pal for furnishing false certificates for securing employment with IIT, Kharagpur.

****

I have perused and considered papers and documents produced before me in connection with the captioned subject and also held conferences with Shri B. J. Chatterjee, Advocate in connection with the above matter.

I am instructed that Shri Jadav Kumar Pal for the purpose of securing employment with IIT, Kharagpur did at the material time represented to the authorities that he belonged to "Kumbhakar" community, a recognized "Backward Class under the Government of West Bengal Notification No. 346-TW/EC, dated 13-7-94 published in the Calcutta Gazette of Extra Ordinary issue" and as such entitled to reservation in employment with IIT, Kharagpur subject to fulfillment of the criteria relating to "Non-Creamy Layer".

In furtherance of his aforesaid claim Shri Jadav Kumar Pal furnished to the concerned authorities a photocopy of the purported "Certificate for Other Backward Classes" bearing No. 0173 alleged to have been issued by the Sub-Divisional Officer, Siliguri.

On March 28, 2007 Shri Jadab Kumar Pal was requested to submit the OBC Certificate in the prescribed format specified by the Government of India and this letter was followed by several Memos dated May 04, 2007, May 08, 2007, May 18, 2007 and June 01, 2007 respectively. The Client has received one Memo No. 1390/G dated 13.06.2007 wherein Sub-Divisional Officer, Siliguri informed the Registrar, IIT, Kharagpur, inter alia, as follows:

"Shri Jadab Kumar Pal son of Shri Jadu Nath Pal who is an Assistant Registrar of your Institute has stated that he has lost his OBC Certificate which had been issued from SDO, Siliguri. At present, however, he claims for a Non-Creamy Layer Certificate".

I have noted the contents of the letter dated 5th July, 2007 of the Registrar, IIT, Kharagpur in response to the above mentioned letter indicating

P. C. Bose

Kind attn: [illegible]

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sary, by filing an application under section 156(3) of the Code of Criminal Procedure, 1973 before the learned Magistrate having jurisdiction.

On perusing the papers and documents produced and on the basis of instructions received I am of opinion that Shri Jadav Kumar Pal may be accused of having committed the following criminal offences and complaint be filed accordingly – fabricating false evidence (Sec. 192 Indian Penal Code, 1860), using evidence known to be false (Sec. 196 Indian Penal Code, 1860), using as true a certificate known to be false (Sec. 198 Indian Penal Code, 1860), cheating (Sec. 415 Indian Penal Code, 1860), forgery (Sec. 463 Indian Penal Code, 1860), making a false document (Sec. 464 Indian Penal Code, 1860), forging for purpose of cheating (Sec. 468 Indian Penal Code, 1860) and using as genuine a forged document (Sec. 471 Indian Penal Code, 1860).

It will be appropriate for the Institute to engage at the first instance a legal practitioner to enquire with the relevant authorities and offices to find out (i) whether the purported OBC certificates furnished by the said Shri Jadav Kumar Pal are genuine and properly issued by appropriate authorities and (ii) whether the alleged Binoda Law College under aegis of Binoda Education Trust is in existence and if so, whether the said Shri Jadav Kumar Pal was actually employed thereat as claimed by him, and to make a report to the Institute for taking action in the matter.

P. C. Bose

(P. C. Bose)
Advocate

I have perused the opinion. It is awaited. The IIT may proceed in the line suggested in this opinion. In the first instance an enquiry should be made as indicated in the last paragraph.

P.C. Chandra
Legal Adviser
24.9.07

INDIAN INSTITUTE OF TECHNOLOGY
KHARAGPUR

ADVERTISEMENT NO. R/ 14 /2010 DATED DECEMBER 15, 2010

IIT Kharagpur invites applications from the Indian nationals for filling up of the following posts :

1. **Post : Deputy Registrars**

   Pay Band : Rs.15600 - 39100/- (PB-3) + Grade Pay Rs. 7600/- and allowances as admissible.

   Qualification & Experience: A postgraduate degree with at least 55% marks or its equivalent grade of 'B' in the UGC 7 point scale; along with :

   (i) 9 years' of experience as Assistant Professor in the AGP of Rs.6000/- and above with experience in educational administration, or

   (ii) Comparable experience in research establishment and/or other institutions of higher education, or

   (iii) 5 years' of administrative experience as Assistant Registrar or in an equivalent post in IITs / University System / Research Institute / Central Government Departments.

   Desirable: Experience / Exposure to computer based Finance & Accounting / Audit / Academic / Purchase & Stores/ Establishment will be preferred.

2. **Post : Assistant Registrars**

   Pay Band : Rs.15600 - 39100/- (PB-3) + Grade Pay Rs. 5400/- and allowances as admissible.

   Qualification & Experience: A postgraduate degree or equivalent with at least 55% marks or its equivalent grade of 'B' in the UGC 7 point scale along with a good academic record.

   Desirable: (a) 3 years experience at supervisory level; (b) Experience in Computer System & Applications, Office Automation.

3. **Post : Senior Administrative Officer (Finance & Project Management) (on contract)**

   Pay Band : Rs.15600 - 39100/- (PB-3) + Grade Pay Rs. 7600/- and allowances as admissible.

   Qualification & Experience: The candidate should be Chartered Accountant/Cost Accountant/MBA (Finance) or equivalent with proven skills in the areas of Financial Management, Cost Control, Budgeting, Internal Audit, Investment and Project Management with adequate exposure to computerization and modern office management. Should have minimum post qualification experience of 8 years in posts carrying a pay scale of Rs. 8000-275-13500/- or equivalent in Government/Public/Private Sector..

4. **Post : Executive Engineer (Civil) : 2 Nos. (on contract/deputation/re-employment)**

   Pay Band : Rs.15600 - 39100/- (PB-3) + Grade Pay Rs. 6600/- and allowances as admissible

   Qualification & Experience: Bachelor's Degree in Civil Engineering or its equivalent with at least 8 years experience in the execution/supervision/maintenance of large Civil Works as Assistant Engineer, Engineer, Project Engineer or its equivalent.

   Desirable :

   (i) Master's Degree in Civil Engineering;
   (ii) Post Graduate Diploma in Construction Management/Structural Engineering
   (iii) Preference will be given to the candidates experienced in coordination and supervision of constructions and maintenance of civil works including Public Health. The incumbent should have experience in contract management, tendering, planning, works accounts procedures, bye-laws of local bodies, etc., and handling construction projects of multi-storied buildings and have experience in planning/estimating/tendering as per CPWD/PWD norms and should have knowledge in structural design, drawings, detailing etc.

5. **Post : Engineer (Civil) : 2 Nos. (on contract/deputation)**

   Pay Band : Rs.15600 - 39100/- (PB-3) + Grade Pay Rs. 5400/- and allowances as admissible.

13. To-and-fro rail fare by the shortest route, being limited to AC-III sleeper class for posts at Sl. Nos. 1-5 and second sleeper class for posts at Sl.Nos. 6-7 will be paid to all the candidates called for interview.
14. Incomplete applications or applications without attested copies of certificates or received after the last date are liable to be rejected.
15. Prescribed application form may be downloaded from the Institute website : www.iitkgp.ac.in/topfiles/non_teaching_top.php. The same may also be obtained from the Office of the Deputy Registrar, Establishment, Indian Institute of Technology, Kharagpur – 721302 (Tel : 03222-282126/282135, Fax : 03222-282020).
16. Any dispute with regard to the selection / recruitment process will be subject to Courts / Tribunals having jurisdiction over Kolkata.
17. **Last date for receipt of completed application forms is 21st January 2011.**
18. NO INTERIM ENQUIRIES WILL BE ENTERTAINED.

Registrar

Samanta

From: "JADAB PAL" <jadabpal@yahoo.co.in>
To: <asregre@adm.iitkgp.ernet.in>
Cc: "Secretary to Registrar" <sectoreg@hijli.iitkgp.ernet.in>; <sectodir@hijli.iitkgp.ernet.in>
Sent: Wednesday, April 06, 2011 5:47 PM
Subject: Violation of National Policy of Reservation for Recruitment of Deputy Registrars.

Dr. Somnath Mitra
Assistant Registrar Establishment
IIT Kharagpur

06.04.2011

Sub: Violation of National Policy of Reservation for Recruitment of Deputy Registrars.
Ref: R/14/2010/DR/829, dated 29th March 2011.

Dear Hon'ble Sir

Most humbly I do hereby acknowledge the receipt of your above mentioned letter for calling me to appear before the Selection Committee for the post of Deputy Registrars on 12th April 2011 at 9.30 AM in the Office of the Director.

In this regard I would like to inform you that in the past as an employee of IIT Kharagpur I faced lot of victimization including falsely implicating me for charge of misconduct by some unscrupulous persons of your Institute. Now I, therefore, apprehend the same phenomenon of victimization during the interview for which I request you to kindly arrange for video recording of the entire Interview process.

You perhaps aware of the fact that I have informed this matter to the Hon'ble Chariman of the Parliamentary Committee for the welfare of SC/ST/OBCs regarding violation of the Government of India Rules for reservation of SC/ST/OBCs, for the post of Deputy Registrars, as mandated by the Constitution of India. This is, inter-alia, another reason for my apprehension of victimization. The MHRD has already been asked to elicit their comments, vide letter No.8 (19)/SCTC/2011, dated 14.01.2011.

Under the above premises, I would request you to kindly constitute Selection Committee as per Institute norms. Kindly exclude all those candidates who do not possess the minimum qualifying marks of 55% **in the Master's Degree**. It is also pertinent to mention here that less than 55% marks in the Master's Degree is not even requisite qualification for the recruitment of Assistant Registrar.

I, therefore, request you to kindly confirm your decision by e-mail for video recording of the entire recruitment/ selection process and exclusion of member of the Selection Committee who have obtained less than 55% marks in the Master's Degree.

Thanks and regards

Yours Sincerely
J.K.Pal
98 D. B. Road East
Kolkata - 700035

भारतीय प्रौद्योगिकी संस्थान खड़गपुर
INDIAN INSTITUTE OF TECHNOLOGY KHARAGPUR

No.: HT/3-3/1627
Date: April 07, 2011

To
Shri J. K. Pal
98 D. B. Road East
Kolkata – 700 035

Email: jadabpal@yahoo.co.in

Dear Sir,

Reference is invited to his e-mail dated 06.04.2011.

You are informed the following:

1. There is no violation of Reservation policy for Recruitment of Deputy Registrar.
2. Your apprehension of being victimised during the selection process has no basis. Candidates' selection will be done purely on merit.
3. Composition of the selection committee and shortlisting of candidates are strictly not under the purview of the candidates. Such action may be considered to be an act to bias the selection process.
4. As per Institute rules, there is no provision for video recording of the selection committee meeting.

We hope that you will attend the interview as scheduled.

With regards,

Yours sincerely,

सहायक कुलसचिव (ई)
Assistant Registrar (E)

GOVERNMENT OF WEST BENGAL

OFFICE OF THE SUB-DIVISIONAL OFFICER : SILIGURI

(General Section)

No. 0173



FORM OF

CERTIFICATE FOR OTHER BACKWARD CLASSES

This is to certify that... Jadale Kumar Pal ... son of... Sri Jay Gobinda Pal ... of Village... Tulakata Jote ... P.O. Kadamtala ...District / Division... ... ... Darjeeling ... in the... ... ...State... ... West Bengal belonging to the... ... Kumbakar ... ...Community... ... ...which is recognised as a Backward Class under the Government of West Bengal Notification No. 346-TW/EC, dated 13-7-94 published in the Calcutta Gazette of Extra Ordinary issue.

Shri... ... Jadale Kumar Pal ...and / or his family ordinarily reside(s) in the State of West Bengal. This is also to certify that he / she does not belong to the catagories of persons to whom reservation shall not apply as per provisions contained in the Schedule mentioned in Order No. 347-TW/EC, dated 13-7-94 of the Schedule Castes and Tribes Welfare Department, Government of West Bengal.

Dated : 10.8.95

SEAL

SUB-DIVISIONAL OFFICER
SILIGURI

10/8/95

N. B. : The term 'Ordinarily' used here will have the same meaning as in section 20 of the Representation of the People Act, 1950.

True Copy

(Tapan Kumar Mukherjee)
Assistant Registrar (Accounts)
I.I.T., Kharagpur.